TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
AUGUST 26, 2019
MINUTES

Green arrows are hyperlinks to the recording

Attachment 1—Staff Report

Present: Joseph Belton, Chair, Barry Wolff, Megan Stevens, Stephen Wood, Stephen Duke, Glyn Cowden.
Absent: David Rubin.
Staff: Michael Robertson, Lynnette Lynes

Mr. Belton called the meeting to order at 6:02 pm.

A. Approval of Agenda
B. Approval of Minutes

Mr. Wolff moved for approval of the agenda and minutes. Mr. Wood seconded the motion. All in favor.

C. Public Comment

There being no public comments, Mr. Belton continued with the agenda.

D. General Correspondence

All correspondence was distributed to the Board and attached to the agenda.

E. Administration of Oath

Mr. Belton administered the oath to those speaking.

F. Business

1. **Case V-27-19, 901 Randall Drive, TMS# 532-11-00-033, Appeal for relief from the strict application of §156.107 (A)(3) to allow deck to extend approximately 60% into required setback the ordinance limits encroachment to 40%. This item was deferred at the July meeting, applicant was not present.**

Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Rick Sargeant, owner, reviewed the request with the Board.

There being no comments, Mr. Belton closed public comment.

Mr. Wolff asked if the structure would be within the 40% lot coverage. Mr. Robertson noted that the deck would not be considered an impervious surface.

Mr. Wolff moved for approval of the request with the condition that the deck is never allowed to be enclosed. Mr. Cowden seconded the motion. All in favor.

2. **Case V-31-19, 2945 River Vista Way, TMS# 594-03-00-237, Appeal from the strict application of the Dunes West Planned Development Ordinance, Dunes West R-1 zoning to allow covered patio encroachment into required 15' side yard setback. This item was deferred at the July meeting, additional information requested. CORRESPONDENCE**

Mr. Robertson stated that the applicant has requested a deferral. The Board agreed to move forward with the request even though the applicant was not present.

There being no comments, Mr. Belton closed public comment.

Ms. Stevens moved for approval of the request based on the findings that it was an irregular shaped lot. Mr. Wood seconded the motion. All in favor.

3. **Case V-32-19, 440 Whilden Street, St. Andrews Church, TMS# 532-01-00-120 & 279, Appeal from the strict application of §156.313 (D)(3) to allow lot coverage by impervious surfaces greater than 40%. This item was deferred at the July meeting, additional information requested.**

Mr. Robertson stated that the staff comments were the same as last month and could read these if the Board desired. The Board agreed to defer reading of the staff comments.

Ms. Kate Campbell and Mr. Mitchell Bohannon reviewed the request with the Board.

Mr. Frank Ancrum, 107 Rose Lane, expressed concern with the design standard for a wooden fence and suggested that the fence should be chain link. He expressed concern that the drainage improvements will not be completed. He suggested that the permit to build the homes should not have been approved if there were going to be drainage concerns. He expressed concern that even though the building would be built with fireproof material, it could still cause damage to the surrounding property. He suggested that the construction should be done in a manner that helps to preserve the community and future residents.

Mr. DeAudre Gregg, 433 Venning St, stated that the surrounding neighbors have lived in the area for many years. She expressed concern that the drainage issues have not been previously addressed and a solution determined. She expressed appreciation for the pervious walkway and the offer to install a pump on the neighboring property to help with the drainage issues. She suggested that the chain link fence would allow

Ms. Sherry Jenkins, 114 Rose Lane, stated that the home was built in 1972 and has been maintained since that time. She stated that there have been drainage issues in the area for several years that has gone unresolved. She suggested that the chain link fence should be allowed in order to see the church from all sides.

There being no further comments, Mr. Belton closed public comment.

Mr. Cowden asked what was located prior to the fire. Mr. Bohannon answered that an addition was done in 1996. Mr. Cowden asked if the drainage has been mitigated with the proposed building. Mr. Bohannon answered in the affirmative. Mr. Bohannon stated that he understands the drainage issues for Ms. Jenkins' property and the church will install an irrigation pump to help with the flooding. He also suggested that the house could be raised through a FEMA grant.

Mr. Wolff asked if the pump would place the water in the church's drainage system. Mr. Bohannon answered in the affirmative.

Mr. Belton asked if the church would be willing to work with the residents in voicing the drainage issues for the area to help expediting a resolution. Mr. Bohannon answered in the affirmative.

▶ *Mr. Wolff moved for approval of the request with the stipulation that a pump is installed on Ms. Jenkins' property by St. Andrews Church and that a recommendation be made to the Town to ask the Town to investigate and determine if there is a FEMA grant available to raise the house. Mr. Cowden seconded the motion. All in favor.*

4. **Case A-8-19, Earl's Court, 404, 410, & 412 Hibben Street, TMS# 532-01-00-138, 139, 141, & 311, Appeal of the Town Administrator's decision to withhold building permits "until all legal issues related to the Cassina parking agreement have been resolved with finality." Applicant requests the Board grant relief ordering the Town to continue to review and process building permit applications as the "mere filing of a lawsuit does not cause a project to no longer comply with zoning." CORRESPONDENCE**

This item was deferred.

5. **Case V-34-19, 101 Haddrell Street, TMS# 517-00-00-044, Request for relief from the strict application of §156.225 to allow the removal of a 32-inch historic oak tree.**

▶ Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Damien Dominguez, owner, reviewed the request with the Board.

Mr. Cowden asked if the owner is willing to mitigate the tree with additional plantings. Mr. Dominguez answered in the affirmative.

There being no comments, Mr. Belton closed public comment.

Mr. Belton commented that the staff report and the arborist report are significantly different. Mr. Robertson concurred.

Mr. Wolff asked if a second arborist opinion is allowed within the code. Mr. Robertson answered in the affirmative. Mr. Wolff suggested that a second opinion might be warranted.

Mr. Belton stated that the applicant submitted expert testimony in the way of the arborist report indicating that the tree is hazardous.

Mr. Cowden moved for approval of the request based on the findings that the tree is infested with termites with 25% mitigation required upon verification from staff of the active termite infestation. Mr. Wood seconded the motion. Motion failed on a 3 to 3 vote with Mr. Cowden, Mr. Duke, Mr. Wood in favor; Mr. Wolff, Mr. Belton and Ms. Stevens opposed.

Mr. Wolff suggested that the item be deferred in order to have an arborist inspect the tree and provide a second opinion for the Board to consider. He asked if the Board would be amenable to the deferral. Mr. Dominguez answered in the affirmative.

Mr. Robertson suggested that a continuance would be appropriate rather than a deferral as the second opinion might not be able to be completed by the next meeting.

Mr. Wolff moved for a continuance in order to have a second arborist inspect the tree and provide a report for the Board's consideration by the October meeting. Mr. Duke seconded the motion. Motion passed on a 5 to 1 motion with Mr. Wolff, Mr. Belton, Ms. Stevens, Mr. Duke, and Mr. Wood in favor; Mr. Cowden opposed.

6. **Case A-9-19, 1045 Tupelo Forest Drive, Proposed Pet Paradise, TMS# 615-00-00-173, Appeal of the Zoning Administrator's Decision that a kennel is not an allowed use by the Pepper Plantation Planned Development Ordinance (18046). Applicant contends that the use is allowed by the ordinance. CORRESPONDENCE**

Mr. Robertson stated that the Zoning Administrator was not able to attend the meeting. The Board agreed to continue with hearing the case. Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Tim Cook reviewed the request with the Board.

Mr. Steven Cantelano, 3847 Tupelo Church Lane, expressed concern with the loss of property values, loss of quality of life because of noise, smell, etc. He expressed concern with pet waste and how this would be handled to prevent runoff into the water table. He expressed concern with noise, pollutants, etc. He expressed concern with the number of dogs that would be allowed to be boarded. He suggested that it is not allowed and the request should be denied.

Mr. Bill Joy, 2004 Washaponi Drive, suggested that the business is too close to residential homes. He asked to show the view from his home on Google Maps. The Board asked that the location be brought up on Google Maps.

Mr. Bruce Homme, 3929 Hanovarian Drive, referred to page 2 of the applicant's submittal. He stated that there are commercial uses allowed at the only entrance for the subdivision. He suggested that the amount of commercial is affecting the quality of life for the subdivision in the way of security of homes, noise, etc. he asked that the Board consider all of these issues when deliberating this issue.

Ms. Claudia Page, 2007 Washaponi Drive, suggested that the proposed boarding facility is not "small". She expressed concern with potential noise. She suggested that the business is located too close to the residential homes.

Mr. John News, 1011 Banker Court, suggested that this issue should have been resolved during the zoning of the property. He suggested that because of the size of the facility, it should be considered a kennel and not a small boarding facility. He expressed concern with noise.

Mr. Mark Ferry, 1012 Washaponi Drive, agreed that this should have been resolved with the zoning. He suggested that the size of the facility should be considered a kennel. He stated that he is opposed to the request.

Ms. Theresa Rowland, 2023 Washaponi Drive, asked if the difference between a kennel and a boarding facility is if there is if the animals are outside. She suggested that if this was planned from the beginning of the development, it should have been constructed before the homes were built.

There being no further comments, Mr. Belton closed public comment.

Mr. Wolff asked if the parcels A1, A2, and A3 are zoned commercial. Mr. Robertson answered in the affirmative. Mr. Wolff asked if these have been zoned commercial since the development was created. Mr. Robertson answered in the affirmative.

Mr. Wood suggested that responsibility for the ambiguity of the document should fall on the author of the document.

Mr. Belton suggested that the intent of the PD document is at issue. He expressed concern with kennels not being allowed and suggested that what is proposed could be considered a kennel.

Ms. Stevens suggested that small boarding refers to the size of the animal not the size of the facility.

Mr. Wood suggested that it could be reasonably interpreted that what is proposed is a kennel and not a small boarding facility. He stated that his inclination would be to uphold the Zoning Administrator's interpretation.

Mr. Wolff asked about containment of noise, waste, etc and asked if these would be sufficiently contained. Mr. Brian Franko, owner of Pet Paradise, answered that the small boarding does refer to the size of the animal. He stated that the suites are indoor and there would be approximately 130-150. He stated that all of the suites would be indoor. He stated that there is a 24 hour caretaker onsite. He stated that the outside play areas are maintained at a 1/10 ratio. He stated that they have a sophisticated filtration system under the play areas in addition to physically scooping waste.

▶ *Mr. Wood moved to uphold the interpretation of the Zoning Administrator with the understanding that the PD can be amended in the future to clarify this issue. Mr. Duke seconded the motion. All in favor.*

G. Adoption of Revised Bylaws

This item was deferred.

H. Approval of Final Orders

The Board signed final orders.

There being no further business, the meeting adjourned at 8:15 pm.

Submitted by,
L. Lynes
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